

2. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
***HEARING ON MOTION IN RE: STRIKE PRAYER FROM 2ND AMENDED COMPLAINT**
FILED BY: HARRIS, BRYANT
TENTATIVE RULING:

Hearing continued on motion of the court to January 9, 2026, at 9 a.m.

3. 9:00 AM CASE NUMBER: C22-02814
CASE NAME: NA WANG VS. SETH WIENER
***HEARING ON MOTION IN RE: TERMINATING SANCTIONS**
FILED BY: WIENER, SETH W,
TENTATIVE RULING:

Defendant Wiener requests that the court impose terminating sanctions against Plaintiff Wang for her repeated violations of this court's orders relating to discovery. The most glaring violation of a court order is Plaintiff's failure to appear at her scheduled deposition on September 18, 2025. The date of September 18, 2025, was scheduled in court on the record after Defendant's motion to compel deposition was granted. On August 29, 2025, Plaintiff had appeared at the court hearing for Defendant's motion to compel her deposition on Zoom. At that hearing the court gave Plaintiff three proposed deposition dates and allowed Plaintiff to select the date of the deposition from one of the three proposed dates. Even at the hearing Plaintiff was reluctant to commit to any date for her deposition. Not surprisingly, Plaintiff attempted to continue the deposition by filing an ex parte motion on the date her deposition was scheduled. Plaintiff then showed up on Zoom to her deposition late stating her equipment wasn't working. The court notes that every appearance Plaintiff has made in this case has been remotely by Zoom. The Court does not find it credible that Plaintiff's equipment conveniently failed on the date of the deposition.

Because Plaintiff's deposition is integral to the defense conducting discovery on all issues relating to the case evidentiary sanctions would not cure Plaintiff's refusal to appear for her deposition. Additionally, monetary sanctions have not deterred Plaintiff's abuse of the discovery process. Accordingly, the court issues terminating sanctions dismissing Plaintiff's case.

4. 9:00 AM CASE NUMBER: C23-00556
CASE NAME: JULIANA RECINO VS. TOTALMED STAFFING, INC., AN ILLINOIS LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE:**
FILED BY:
TENTATIVE RULING:

The court grants the motion for final approval and enters judgment in this case pursuant to the terms of the settlement.

5. 9:00 AM CASE NUMBER: C23-01537

CASE NAME: KATHERINE HART VS. DAVID SMITH

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: MATHEW RUSSELL, ESQ.**

FILED BY: HART, KATHERINE

TENTATIVE RULING:

Based upon the breakdown in communication in the attorney-client relationship the court grants counsel's request to be relieved. The order is effective upon the filing of the proof of service of the signed order upon the client.

6. 9:00 AM CASE NUMBER: C24-02275

CASE NAME: DIDAR SINGH VS. KULVINDER SINGH PANNU

***HEARING ON MOTION IN RE: REINSTATE TEMPORARY RESTRAINING ORDER AND PRELIMINARY INJUNCTION**

FILED BY: SINGH, DIDAR

TENTATIVE RULING:

Before the Court is Plaintiff Didar Singh's Motion to Reinstate Temporary Restraining Order and Preliminary Injunction.

Defendants' Request for Judicial Notice is granted. (Cal. Evid. Code § 452 (d).) While the RJN indicated that the documents sought to be noticed were attached, no documents were actually attached to the filed version of the RJN. As the documents were all filings in this matter, the Court had access to them. Counsel should ensure all documents are properly filed.

Factual and Procedural Background

On August 22, 2024, Defendant Kulvinder Singh Pannu obtained a Temporary Restraining Order against Plaintiff Didar Singh preventing Plaintiff from contacting him or going to the Sikh Center of the San Francisco Bay Area, El Sobrante Gurdwara Sahib ("Sikh Center") – case number N24-1525.

Plaintiff filed his complaint in the instant matter on August 27, 2024, alleging five causes of action: (1) violation of civil and religious rights; (2) defamation; (3) intentional infliction of emotional distress; (4) breach of fiduciary duty; and (5) declaratory relief.

On September 9, 2024, Plaintiff appeared *ex parte* seeking a temporary restraining order ("TRO") and an order to show cause regarding a preliminary injunction restraining Defendants from prohibiting or interfering with Plaintiff's access to the Sikh Center and related actions by Defendants. The Court granted the TRO and scheduled a hearing relating to the preliminary injunction.

On September 13, 2024, Defendants appeared *ex parte* seeking an order vacating the TRO. The Court granted the *ex parte* application, dissolving the TRO issued on September 9 "immediately." Thereafter, the parties briefed the issues related to the preliminary injunction. On October 25, 2024, the Court issued its Order: "The OSC re Preliminary Injunction is discharged and deemed moot. The temporary restraining order was vacated on 9/13/24."

On February 7, 2025, the civil restraining order issued in the 1525 matter was vacated. Four months later, on June 9, 2025, Plaintiff filed the instant motion to "reinstate" the TRO originally issued in this